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Desire

Jewelry, Inc., et al. v. Bay Alarm Company, et al., Case No. 25PSCV01283

ORDER

ON MOTION FOR SUMMARY JUDGMENT

Defendant Bay Alarm Company's Motion
for Summary Judgment is DENIED.

Background

Plaintiffs Desire Jewelry, Inc.

("Desire"), Monir Kassis ("Monir"), and Jennifer Kassis ("Jennifer")

(collectively, "Plaintiffs") filed the instant action on April 10, 2025 against

Defendants Bay Alarm Company ("Bay Alarm"), Nathan Roxas ("Roxas"), and Does

1-100. Plaintiffs' complaint alleges four causes of action: (1) breach of

contract; (2) breach of the implied covenant of good faith; (3) intentional or

negligent misrepresentation; (4) willful misconduct; and (5) negligence.

Plaintiffs allege that they entered into a contract with Bay Alarm, wherein Bay

Alarm was to install and maintain an alarm system. Plaintiffs allege that Bay

Alarm breached the contract by failing to alert law enforcement or Plaintiffs

when a break-in occurred. Plaintiffs further allege that Roxas misrepresented

what the alarm system would do for Plaintiffs.

Pending before the Court is Bay

Alarm's motion for summary judgment.

Legal Standard

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code of Civil Procedure ("CCP"), § 437c(a)(1).)

Code of Civil Procedure section

437c(c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

"The function of the pleadings

in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal. App. 3d 367, 381-382.)

Courts

"liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

To

establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence sufficient to establish a triable issue of material fact on the merits of the defendant's showing. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 163.)

Discussion

The Court Construes the Motion

as a Motion for Summary Judgment Only

At the outset, the Court

construes the motion as only being a motion for summary judgment and not a motion for summary adjudication in the alternative. The caption on page one of

Defendant's initial Notice of Motion (filed 4/17/2026) only refers to the motion as a motion for summary judgment. (Def. Mot., p.1.) Further, while the fifth paragraph references summary adjudication, the opening paragraph in Defendant's initial Notice of Motion only states that Defendant is seeking an order granting summary judgment and does not state that Defendant is seeking summary adjudication in the alternative. (See Def. Mot., p. 1-2; see Cal. Rules of Court, rule 3.1110(a) ["A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order."].) Moreover, the notice merely asserts it seeks summary adjudication on "any claim or issue for which the Court determines summary judgment is not appropriate." This is improper. The notice of motion must specifically identify each cause of action, affirmative defense, claim for damages, or issue of duty the moving party is asking the Court to dispose of. (Cal. Rules of Court, rule 3.1350(b) ["If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts."]) Finally, in addition to the notice being deficient, Defendant's separate statement does not comply with California Rules of Court, rule 3.1350(b) & (d).

Procedural Deficiencies

Both parties are admonished for various untimely filings and notices of errata, as well as the procedural deficiencies outlined below that made it difficult for the Court to review and analyze the instant motion and opposition.

First, the evidence cited in Defendant's Separate Statement of Undisputed Material Facts ("UMF") does not align/match up with the evidence cited in the Compendium of Evidence or the Declaration of Katherine R. Andrews. For example, Defendant's UMFs 3-10 and 12-18 cite to Exhibit A as the Commercial Alarm Installation and Services Agreement ("the Agreement"); however, both the Compendium of Evidence and the Declaration of Katherine R. Andrews cite to the Agreement as Exhibit C, not Exhibit A. As another example, Defendant's UMF 11 cites to Exhibit B as the Alarm Agreement Amendment ("the Amendment"); however, both the Compendium of Evidence and the Declaration of Katherine R. Andrews cite to the Amendment as Exhibit D, not Exhibit B.

Second, “[c]itation to the evidence in support of each material fact must include reference to the exhibit, title, page, and line numbers.”(Cal. Rules of Court, rule 3.1350(d)(3).) Defendant’s UMFs 3-10 and 12-18 do not cite to line numbers. To the extent that Defendant did not cite to line numbers because the Agreement does not contain line numbers, Defendant also does not cite to specific paragraphs, sections, subdivisions, or provisions of the Agreement, making it difficult for the Court to determine the specific contract provisions being referenced.

Third, Plaintiff’s filing “Exhibits In Support of Plaintiffs’ Opposition” (“Plaintiffs’ Exhibits”) does not comply with California Rules of Court, rule 3.1110(f)(4). “Electronic exhibits must meet the requirements in rule 2.256(b). Unless they are submitted by a self-represented party, electronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit.” (Cal. Rules of Court, rule 3.1110(f)(4).) Here, Plaintiffs’ Exhibits do not include electronic bookmarks with links to the first page of each exhibit. Additionally, the Court notes that it is exceedingly difficult to identify any of Plaintiffs’ Exhibits. Although Plaintiffs allegedly submit 25 exhibits in opposition, not a single exhibit is labeled/identified by exhibit number or page number to identify which exhibit corresponds with the label in the table of contents for Plaintiffs’ Exhibits.

Merits

Breach of Contract

Bay Alarm contends that Plaintiff cannot establish duty or breach because Bay Alarm’s “obligations were strictly limited to monitoring alarm signals transmitted from the system and responding upon receipt of such signals” and at the time of the burglary, “no alarm signal was transmitted to or received by Bay Alarm.” (Mot. at 9.) Bay Alarm further argues that Plaintiff cannot demonstrate causation. The Court disagrees.

As to duty and breach, the contract provides that “[w]hen a signal from the System is received in Bay’s Central Station, Bay will try to telephone the proper

police or fire department or other emergency personnel and the first available person on the Emergency Notification List User gives us.” Bay Alarm contends it never received an “alarm signal,” but the contract language is not so limited. The Court determines that there is a dispute of material fact regarding whether the alarm system sent a “signal” and whether Bay Alarm was required to act when it received such information.

As to

causation, the Court similarly determines that Bay Alarm has not met its initial burden. Its argument that Plaintiffs do not know precisely when or how long the burglary lasted does not show that Plaintiffs cannot establish causation. Bay Alarm’s own statement of undisputed facts acknowledges that a burglary occurred, and its argument does not eliminate a causal link between its alleged failure to respond and Plaintiffs’ claimed losses.

Since

summary judgment can be granted only if the entire action has no merit, and Bay Alarm failed to carry its burden on the breach-of-contract action, the motion must be denied without needing to reach the remaining causes of action.

Conclusion

Bay Alarm’s

motion for summary judgment is denied.